

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEFFAN MARTELL,

Petitioner

VS.

GENOA MARTELL,

Respondent

) Case Number: FDI-26-803018

) Hearing Date: July 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER (MOTION TO QUASH LACK OF PERSONAL JURISDICTION) .

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Steffan Martell (Husband) and Respondent Genoa Martell (Wife).
- 2) On 5/14/26, Petitioner filed a Petition for Legal Separation indicating the date of marriage is 1/15/12 and date of separation is 12/7/25 for a marriage of 13 years and 10 months.
- 3) On 6/1/26, Respondent, specially appearing, filed a Motion to Quash the proceeding and/or service based on lack of personal jurisdiction.
- 4) On 6/1/26, Respondent filed a Declaration in support of her Motion to Quash. Respondent claims that this Court lacks personal jurisdiction because she lives in London, United Kingdom (U.K.) and neither she nor Petitioner have lived in California since 2022. Respondent alleges that Petitioner resides in British Columbia, Canada, and that they previously discussed filing for divorce in British Columbia. Respondent further states that she does not consent to California's jurisdiction.
- 5) On 6/1/26, Respondent filed a Memorandum of Points and Authorities in support of her Motion to Quash.

- 1 6) On 7/7/26, Respondent filed a Proof of Service by First-Class Mail indicating the Request for
2 Order, supportive declaration, and Memorandum of Points and Authorities were served by mail
3 on 6/15/26.
- 4 7) On 7/14/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Motion to
5 Quash. Petitioner claims that he has been homeless in San Francisco since March 2026
6 and intends to permanently reside in San Francisco. Petitioner asserts that Family Code section
7 2320(a) only governs dissolution proceedings, so he is not bound by residency requirements
8 given that he filed for legal separation. Petitioner claims he had Respondent served according to
9 the Hague Convention. Petitioner argues that California has specific jurisdiction over
10 Respondent because she chose to file a separate civil suit in San Francisco and has been working
11 as a consultant for a Bay Area based company since February 2025. Petitioner states that he has a
12 financial interest in Respondent's civil suit and that the outcome of the suit will affect division of
13 the parties' community property.
- 14 8) On 7/14/26, Petitioner filed a Request for Judicial Notice of the filings in civil case CGC-24-
15 615358.
- 16 9) On 7/15/26, Petitioner filed a Proof of Service by Electronic Mail indicating all responsive
17 pleadings to the Request for Order were served on Respondent via email on 7/15/26.
- 18 10) On 7/21/26, Petitioner filed a Proof of Service of Summons indicating the Petition for Legal
19 Separation, Summons, and a blank Responsive Declaration were personally served on
20 Respondent on 6/4/26.
- 21 11) On 7/21/26, Petitioner filed a Supplemental Declaration of Julian Rozario regarding personal
22 service effectuated in the U.K. and attesting to the Proof of Service of Summons filed 7/21/26.

23 **B. Findings and Order**

- 24 1) As a preliminary issue, the Court takes Judicial Notice of civil case CGC-24-615358.
- 25 2) In proceeding to the merits of the motion, the Court finds as follows:
- 26 3) The residency requirement set forth in Family Code section 2320(a) does not apply to filing a
27 legal separation petition. (Cal. Prac. Guide: Family Law (The Rutter Group 2024) ¶ 3:161.)
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1 4) Further, venue is proper in a legal separation proceeding in the county where either party resides
2 at commencement of the action. (Cal. Prac. Guide: Family Law (The Rutter Group 2024) ¶
3 3:171.)

4 5) Petitioner has sufficiently established that he resided in San Francisco at the time of filing
5 the petition.

6 6) However, it is undisputed that Respondent is domiciled in the U.K. and therefore the Court must
7 establish personal jurisdiction over Respondent.

8 7) Respondent was served in the U.K. and does not consent to California's jurisdiction, which
9 requires the Court to determine that Respondent has "minimum contacts"
10 with California. (*Burnham v. Sup.Ct.* (1990) 495 US 604.)

11 8) A preponderance of the evidence shows that Respondent: (a) is the plaintiff in a San
12 Francisco civil suit, which was filed after Petitioner moved out of the state in 2022; (b) has been a
13 consultant for the Bay Area based company, Genesis Therapeutics since February 2025, and
14 (c) agreed to California jurisdiction for any arbitration and lawsuits under the consulting
15 employment agreement. The Court finds these actions establish substantial, continuous, and
16 systematic minimum contacts with California; therefore, the Court has personal jurisdiction over
17 Respondent.

18 9) As such, Respondent's Motion to Quash the proceeding is DENIED.

19 10) Respondent's Motion to Quash Service of Summons is also DENIED as the Court further finds
20 that Petitioner had the Petition for Legal Separation served on Respondent by personal service
21 and in accordance with The Hague Convention.

22 11) Respondent may file an FL-120 Response—Marriage/Domestic Partnership within 60 days of
23 this hearing date.

24 12) The Court will prepare the Findings and Order After Hearing.
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